IN THE SUPERIOR COURT OF JUDICATURE, IN THE HIGH COURT OF JUSTICE, LAW COURT COMPLEX COMMERCIAL DIVISION (10) HELD IN ACCRA ON TUESDAY THE 11TH DAY OF NOVEMBER, 2025 BEFORE HER LADYSHIP ADELAIDE ABUI KEDDEY J.

SUIT NO: LD/0622/2023

1. ALICE AKU OTUTEYE
2. NORA ADUKWEI ASAFU-ADJAYE - PLAINTIFFS

VS

ATC TOWER GHANA LTD - DEFENDANT

JUDGMENT

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[1] The Plaintiffs commenced the instant action against the Defendant on 28th August 2023 for the following reliefs:

a) An order to evict the Defendant from the portion of the land on which house number B326/3 is situated.

b) Recovery of mesne profits from the Defendant for its occupation of the land on which house number B326/3 is situated, from 15th September 2022 assessed at the rate of Eighteen Thousand Ghana cedis (GHS18,000.00) a month to the date it vacates the Land.

c) Interest on the mesne profit amount due from 15th September 2022 to the date of final payment.

d) Cost including legal fees.

[2] The Plaintiffs are the Administrators of the estate of their late mother, Mrs. Janet Allotey who was of House Number B326/3, 34 Nmenmete Road (also known as Freedom Street) in Laterbiokoshie, Accra.

[3] The Defendant is a limited liability company duly incorporated under the laws of the Republic of Ghana as a Telecommunications Infrastructure Company engaged in the business of establishing and operating tower sites for shared use by its customers.

[4] Upon service of the Writ of Summons and Statement of Claim on the Defendant, the Defendant on 26th September 2023 entered Appearance.

[5] Subsequently, the Defendant filed its Statement of Defence and Counterclaim on 10th November 2023. Per its Counterclaim, the Defendant is praying for the following reliefs against the Plaintiff.

a) A declaration that the Plaintiffs' act of locking up the premises where the Defendant has rented since 5th February 2023 is unlawful and amounts to forceful ejectment.

b) An order directing the Plaintiffs to indemnify the Defendant against liabilities from third parties on account of the Plaintiffs interfering in the economic activities of the Defendant

c) An order of mandatory injunction directed at the Plaintiffs, their agents, servants, workmen, and assigns, and all those claiming through them to grant the Defendant access to the premises to recover its equipment and plants.

d) Special damages of the sum of Fifteen Thousand One Hundred and Two Cedis Eighty-Three Pesewas (GHS15,102.83) for the loss of monthly earnings suffered by the Defendant commencing from 5th February 2023.

e) Cost.

[6] The Plaintiff filed a Reply to the Defendant's Statement of Defence and Counterclaim on 5th February 2024.

BACKGROUND FACTS

[7] The father of Plaintiffs, Mr. Henry Ebenezer Allotey by a Land Title Certificate dated 11th March 1992 is the owner of Parcel No. 239 Block 4 Section 35 situate at Lartebiokorshie in the Greater Accra Region of the Republic of Ghana. He constructed a property called House Number B 326/3 Nmenmeete Road Laterbiokorshie in the Greater Accra Region. Upon his death, the Plaintiffs' mother, Mrs. Janet Allotey, became the beneficial owner of the property.

[8] The Plaintiffs' mother Mrs. Janet Allotey executed a Lease Agreement with Scancom Limited dated 1st day of September 2005 wherein Mrs.

Allotey leased a "space measuring 12m x 12m square of land" to Scancom Limited.

[9] The Lease Agreement was for a term of fifteen (15) years certain 1st September 2005 at a monthly rent of Two Hundred and Eighty US Dollars Only ($280.00) in cedi equivalent.

[10] By the terms of the Agreement, it was agreed that the rent shall be reviewed by the parties every 5 years provided that the parties agree that in the case of an increase in the rent, increment shall not exceed the addition of up to 10% of the preceding year's rent.

[11] Subsequently, Mrs. Janet Allotey and Scancom Limited executed a Lease Amendment dated 7th September 2010 which gave Scancom Limited the right to assign its interest to a third party and sublicense the Premises to a third party within the telecommunications industry. The rent was escalated to US$308.00 in accordance with the agreement.

[12] The parties further agreed that every 5 years, the rent due shall automatically increase by an amount equal to 10% of the preceding year's rent. The parties agreed that apart from the modification, all the other clauses of the Lease Agreement were still in force.

[13] Upon the death of Mrs. Janet Allotey, the Plaintiffs were appointed the Administrators of the Estate of Mrs. Janet Allotey and Scancom Limited also assigned its interest to the Defendant herein.

[14] Thereafter, the Plaintiffs and the Defendant executed a Second Amendment to the Leasehold Agreement by a document dated 6th October 2020 to extend the term of the Lease from 15th September 2020 to 14th September 2022 at a monthly rent of GHS8,550.00.

[15] The parties again agreed that apart from the modified terms all the other terms of the Lease Agreement and the First Amendment were still in force.

[16] Plaintiffs contend that the last rent of Eight Thousand Five Hundred and Fifty Cedis (GHS8,550.00) was the Ghana Cedi equivalent of One Thousand Five Hundred United States Dollars (US$1,500.00) using the rate of US$1-GHS5.7.

[17] Subsequently, Plaintiffs demanded that the Defendant pays rent of One Thousand Five Hundred United States Dollars (US$1500.00). The Defendant engaged the Plaintiffs in negotiations. When that failed, the Defendant wrote to the Plaintiffs to give it a short-term extension from 15th September 2022 to 14th March 2023 to enable it secure the necessary permit to decommission the tower and its associated equipment.

[18] In Plaintiffs response, they stated that they would agree to the short-term lease upon the Defendant paying USD$1,500.00 per month, payable in advance at the prevailing forex rate on or before 17th December 2022 together with a security deposit of two months refundable at the end of the extension, if the fence wall was repaired and premises left in the same condition as it was at the beginning of the lease.

[19] The Plaintiffs threatened to lock the premises where the Defendant's telecommunication infrastructure was and actually placed a lock and chains on the entrance gate to the premises on 5th February 2023.

[20] Thereafter, the Plaintiffs caused their lawyers to write to the Defendant, making a demand US$9000.00 for rent arrears for the period of 15th September 2022 to 14th March 2023.

[21] Plaintiffs made a further demand of a monthly rent of US$2,250.00 commencing from 15th March 2023 to the date the tower is removed from the site.

[22] Plaintiffs' letter stated that the Defendant owed a total of GHS182,250 as the cedi equivalent of the outstanding rent and directed the Defendant to pay within 14 days, failing which an action would be commenced.

[23] The Defendant replied to the lawyer's letter informing the Plaintiffs that it could not accede to the demands of the Plaintiffs and made a counteroffer in the letter dated 7th June 2023. The Defendant further informed the Plaintiffs' lawyer of the unlawful locking of the premises.

[24] The Plaintiffs in a letter dated 5th day of July 2023 rejected the Defendant's counteroffer and proceeded to officially terminate the lease. Plaintiffs demanded that the Defendant removes its infrastructure from the site.

[25] On the 12th day of January 2024, the Defendant notified the Plaintiffs of its intention to decommission its tower and associated equipment. The site was officially decommissioned on the 18th day of January 2024.

ISSUES FOR DETERMINATION

[26] The issues for determination are as follows:

1. Whether or not the locking up by the plaintiff of the premises where the defendant has rented is lawful.
2. Whether or not the plaintiff's unlawful action impeded the defendant from discharging its contractual obligations owed to third parties.
3. Whether or not the Plaintiffs are entitled to claim mesne profit and if so, how much?
4. Whether or not the plaintiffs locked up the premises and thereby prevented the defendant from accessing the premises since 5th February 2023.

TESTIMONY OF PLAINTIFFS

[27] The 1st Plaintiff, a lawyer and administrator of the estate of Madam Janet Allotey testified on behalf of the Plaintiffs. Her Witness Statement is dated 30th July 2024.

[28] Plaintiffs contend that the Defendant failed to meet the conditions stipulated in the letter requesting for a 6 month extension. Thus, in February 2023, she placed a lock on the entrance gate to the premises.

[29] She testified that despite the lock on the entrance gate, the Defendant found a way of accessing the premises and kept refueling its generator sets without their assistance and that Defendant's generators continued to run till November 2023.

[30] Plaintiffs contend that the Defendant had possession of the premises from the expiration of the last lease agreement, being 14th September 2022 to 18th January 2024 when it entered the premises and decommissioned its tower, which was a total period of Sixteen (16) months.

[30] Therefore, the total mesne profits owed by the Defendant is the Cedi equivalent of US$24,000.00.

[32] In support of their case, the Plaintiffs tendered a copy of the Letters of Administration dated 11th January 2013 marked as ***Exhibit "A"***, a Letter dated 4th November 2022 marked as ***Exhibit "B"***, a Letter dated 17th November 2022 marked as ***Exhibit "C"***, a WhatsApp Communication marked as ***Exhibit "D"***, a Letter dated 3rd May 2023 marked as ***Exhibit "E"***, ***Exhibit "F"*** which is a Letter dated 7th June 2023, ***Exhibit "G"***, a Letter dated 12th January 2024 and ***Exhibit "H"*** which is a Leasehold Agreement dated 1st September 2005.

[33] Plaintiffs also tendered ***Exhibit "J"***, a Lease Amendment dated 7th September 2010, ***Exhibit "K"***, Second Amendment dated 6th October 2020, ***Exhibit "L"***, Land Certificate, No GA, 2226, VOL 17 FOLIO 18 dated 11th

March 1992, ***Exhibit "M" …*** ,Picture of Lessor's Property marked as ***Exhibit "N"*** – and a Letter dated 5th July 2023 marked as ***Exhibit "P"***.

TESTIMONY OF DEFENDANT

[34] The Defendant testified through its Asset Manager, Mr. Edwin Kotoka. His witness statement is dated 21st January 2025.

[35] Defendant representative testified that as parties were negotiating on rent the Plaintiffs unlawfully locked up the premises of the Defendant on 5th February 2023 thereby denying the Defendant access to its infrastructure.

[36] In support of its case, Defendant tendered ***Exhibit "1"*** which is a Leasehold Agreement dated 1st September 2005, ***Exhibit "2"*** , a Lease Amendment dated 7th September 2010, ***Exhibit "3"*** Second Amendment of Leasehold Agreement dates 6th October 2020 and ***Exhibit "4"***.

[37] Defendant also tendered a Letter dated 3rd May 2023 marked as ***Exhibit "5"***, a Letter dated 7th June 2023, ***Exhibit "6" series*** which are pictures of the gate or entrance to the site and a Letter dated 12th January 2024 marked as ***Exhibit "7"***.

[38] These exhibits were tendered through the 1st Plaintiff at the trial.

THE BURDEN OF PROOF AND STANDART OF PROOF

[39] **Section 10(1) of the Evidence Act, 1975 (NRCD 323)** explains the burden of proof as the obligation of a party to establish a requisite degree of belief

concerning a fact in the mind of the tribunal of fact or the court which requires a party to raise a reasonable doubt concerning the existence or non-existence of a fact by a preponderance of the probabilities in civil trials.

[40] Preponderance of the probabilities means that degree of certainty of belief in the mind of the tribunal of fact or the Court by which it is convinced that the existence of a fact is more probable than its non-existence.

[41] **Section 14 of NRCD 323** states that, *"Except as otherwise provided by law, unless it is shifted, a party has the burden of persuasion as to each fact the existence or non-existence of which is essential to the claim or defence that party is asserting."*

[42] **Section 11(1) and (4) of NRCD 323** provides further:

> *"(1) For the purposes of this Act, the burden of producing evidence means the obligation of a party to introduce sufficient evidence to avoid a ruling against him on the issue…*
>
> *(4) In other circumstances, the burden of producing evidence requires a party to produce sufficient evidence so that on all the evidence a reasonable mind could conclude that the existence of the fact was more probable than its non-existence."*

[43] The burden of proof and standard of proof in civil cases is summed up in the Supreme Court case of ***Gihoc v Hanna Assi [2005-2006] SCGLR 458 at 485*** *by* Her Ladyship Sophia Akuffo JSC in her judgment thus:

"Since the enactment of NRCD 323, therefore, except otherwise specified by statute, the standard of proof (the burden of persuasion) in all civil matters is by a preponderance of the probabilities based on a determination of whether or not the party with the burden of producing evidence on the issue has, on all the evidence, satisfied the judge of the probable existence of the fact in issue …hence, by virtue of the provisions of NRCD 323, in all civil cases, judgment might be given in favour of a party on the preponderance of the probabilities…"

[44] In explaining the burden of proof in civil trials, the Supreme Court held in the case of ***Poku v Poku [2007 -2008] 2 SCGLR 996 at 1022*** per Georgina Wood CJ (as she then was) that:

"…generally, the burden of proof is therefore on the party asserting the facts, with the evidential burden shifting as the justice of the case demands. The standard or degree of proof must also necessarily be proof of the preponderance of the probabilities within the meaning of section 12 (2) of the Evidence Act, 1975 (NRCD 323)."

[45] **Section 17 of NRCD 323** allocates the burden of producing evidence as follows:

(1) Except as provided by law, the burden of producing evidence of a particular fact is on the party against whom a finding on that fact would be required in the absence of further proof.

(2) Except as provided by law, the burden of producing evidence of a particular fact is initially on the party with the burden of persuasion as to that fact"

[46] The Supreme Court held in the case of ***Klah v Phoenix Insurance Company Limited [2012] 2 SCGLR 1139***, thus:

> *"Where a party makes an averment capable of proof in some positive way e.g. by producing documents, description of things, reference to other facts, instances and his averment is denied, he does not prove it by merely going into the witness box repeating the averment on oath or having it repeated on oath by his witness. He proves it by producing other evidence of facts and circumstances from which this Court can be satisfied that what he avers is true."*

[47] In the case of ***In Re Ashalley Botwe Lands [2003-2004] SCGLR 420***, the Supreme Court held that whereas the onus is on a Plaintiff to lead evidence that would tilt the balance of probabilities in his favour, the burden of producing evidence is not fixed but shifts from party to party depending on the issue asserted or denied. See Section 11(1) and 12(1) of NRCD 323.

[48] The Supreme Court gave some clues as to how this burden ought to be discharged in the case of ***Ackah vs. Pergah Ltd and Others [2010] SCGLR 728 at 736*** where the court held that:

"It is a basic principle of law on evidence that a party who bears the burden of proof is to produce the required evidence of the facts in issue that has the quality of credibility short of which his claim may fail. The method of producing evidence is varied and it includes the testimonies of the party and material witnesses, admissible hearsay, documentary and things(often described as real evidence) without which the party might not succeed to establish the requisite degree of credibility concerning a fact in the mind of the court or tribunal of fact such as a jury. It is trite law that matters that are capable of proof must be proved by producing sufficient evidence so that on all the evidence a reasonable mind could conclude that the existence of the fact is more probable than its non-existence. This is a requirement of the law on evidence under sections 10(1) and 2 and 11(1) and (4) of the Evidence Act, 1975 NRCD 323. "

[49] In the case of ***Sumaila Bielbiel (No. 3) vs.. Adamu Dramani & Attorney-General [2012] SCGLR 370 @ 371*** the Court held thus:

"The distinction between the two burdens of proof, namely the "burden of persuasion" as defined in Section 10(1) and the "burden of producing evidence" as defined in section 11(1) of the same Act, is important because the incidence of the burden of producing evidence can lead to a Defendant acquiring the right to begin leading evidence in a trial, even though the burden of persuasion remains on the Plaintiff. Ordinarily the burden of persuasion lies on the same party as bears the burden of producing evidence. However,

depending upon the pleadings or what facts are admitted, the evidential burden can move on to a Defendant. The cumulation on the Defendant of the evidential burden on the issues to be tried in a case can result in the right to open the case of the Defendant."

[50] With respect to counterclaims as a separate action, the Supreme Court per Rose Owusu JSC (as she then was) stated in the case of ***Sasu Bamfo vs.. Sintim [2012] 1 SCGLR 136 at 155***, thus:

"A counterclaim is a different action in which the defendant as a counter claimant is the plaintiff and the plaintiff in the action becomes a defendant. … each of them bore the burden of proof and persuasion to prove conclusively, on the balance of probabilities that he was entitled to the reliefs claimed. Section 11(1) of the Evidence Act, 1975 (NRCD 323), enjoined the defendant in his capacity as a plaintiff in the counterclaim to introduce sufficient evidence to avoid a ruling on the issue against him."

EVALUATION OF THE EVIDENCE ADDUCED AT THE TRIAL

[51] I would now proceed to determine the issues as set down.

Whether or not the locking up by the Plaintiff of the premises where the Defendant has rented is lawful

[52] To start with, the evidence adduced at the trial establishes the fact that the portion of land leased to the Defendant's assignor was secured by a wall.

[53] This fact was confirmed by the 1st Plaintiff during cross-examination by counsel for Defendant on 6th May 2025 as follows:

Q: You further mentioned that as part of the agreement the Defendant constructed a wall on the 12x12 m2 land and created a gate which gave it direct access without coming to the main house. Is that not the case?

A: Yes…

Q: By this gate they could come in directly from the road to their portion?

A: Yes.

Q: You admit that they were the only ones who had access to the Defendant's portion?

A: Yes.

Q: Would you agree that not only did Defendant have their transmission equipment on their portion but they also had a generator and other equipment on the site?

A: Yes, my Lady

Q: And you would further agree that we built a shed for this generator and other equipment on the site. Is that the case?

A: This is the case.

[54] Secondly, ***Exhibit "6" Series*** and ***Exhibit "N"*** confirms that the entrance of the site was locked by Plaintiffs with a padlock and chains.

[55] Plaintiffs contend that there was no formal lease, no formal amendment, and no formal written understanding that allowed the Defendant to be on the premises after the expiration of the Lease Agreement. That, between the expiry and the decommissioning of the Defendant's equipment, the Defendant was a trespasser. Therefore, their locking up of the premises was lawful since the Defendant owed rent.

[56] In fact, Counsel for Plaintiffs submitted that the 1st Plaintiff only placed a padlock on one side and that the premise was not completely locked so the Defendant had access to the premises since it vacated the premises after about a year.

[57] Counsel for Plaintiffs submitted that by Section 1(2) of the Rent's Act, 1963 (Act 220), the law is not applicable to the instant action as the land leased was bare land.

[58] On the other hand, the Defendant contends that the Plaintiffs act of locking the Premises was unlawful as same was contrary to the legal procedure of a landlord re-entering his land. The lawful way was for them to come to court as they did in this instant case and not act unlawfully.

[59] It is the case of the Defendant that by Clause 5a of the Lease Agreement dated 1st September 2005 (Exhibit 1), the parties agreed that if the rent reserved became due, payable, and same was not paid, the Landlord would be entitled to re-enter the land. However, this form of re-entry did not

include locking up the premises. Therefore on the principle of public policy, the Plaintiffs must not be allowed to benefit from their own wrong.

[60] The question is, was the act of locking up the premises lawful or unlawful?

[61] The Black Law Dictionary, 10th Edition at page 1771 defines unlawful to mean an act not authorized by law or conduct that is not authorized by law.

[62] The Rent Act, 1963 (Act 220) regulates the relationship between landlord and tenants and provides the procedure for recovery of possession and ejectment.

[63] **Section 17 (1) (a) and (b)** (of part V) of Act 220 which deals with the procedure for recovery of Possession and Ejectment states as follows:

> (1) Subject to the provisions of subsection (2) of section 25 and of section 28, no order against a tenant for the recovery of the possession of, or for the ejectment from, any premises shall be made or given by the appropriate Rent Magistrate, or any other Judge of a court of competent jurisdiction in accordance with the provisions of any other enactment for the time being in force, except in any of the following circumstances:—

(a) where any rent lawfully due from the tenant has not been paid or tendered within one month after the date on which it became lawfully due;

(b) where any obligation of the tenancy, other than that specified in paragraph (a), so far as such obligation is consistent with the provisions of this Act, has been broken or not performed…

[64] It presupposes that a landlord who wishes to recover possession of her premises for non-payment of rent is required to seek redress at the Courts. Anything short of that, as in the instant case is unlawful.

[65] A Statutory tenant refers to a tenant who retains protection under the Rent Act upon the termination or expiration of their contractual tenancy.

[66] Thus, a tenant who holds on to a premise after the expiry of a tenancy agreement and continues to exercise possession on the terms of the expired agreement is regarded as a statutory tenant.

[67] See **Section 29 (1) (a) of Act 220.** See also the case of ***Mrs. Veronica Sarhene and Mrs. Mary Atta Siaw v Edward Nassar & Co. Ltd and Paul Otchere & 14 Ors (2019) JELR 67481 (SC)***.

[68] A statutory tenant cannot be evicted except by an order of the Court. See the case of ***Karam & Sons v Traboulsi & Co [1964] GLR 513***.

[69] In the instant case, there was an existing Lease between the parties before its expiration in September. Since the Defendants stayed on even after

the expiration of the term and requested for a 6-month extension, it is my view that describing the Defendant as a statutory tenant is not out of place.

[70] In view of the fact that the premises had been fenced, with a gate and the Defendant was paying rent to the Plaintiffs until expiration of the Lease Agreement on 14th September 2022, I hold that the locking up of the Defendant's premises by Plaintiffs was unlawful and amount to forceful ejectment.

Whether or not the plaintiffs locked up the premises and thereby prevented the defendant from accessing the premises since 5th February 2023.

[71] The Defendant contends that it was prevented from having access to its premises by Plaintiffs since 5th February 2023.

[72] At the trial, the Defendant representative testified that after Defendant notified the Plaintiffs of its intention to decommission, he personally called the 1st Plaintiff to grant the Defendant's workers access to the premises for the purpose of decommission.

[73] Plaintiffs, on the other hand, contend that the Defendant had access to the premises even though they had locked up the said premises.

[74] Since Plaintiffs' assertion that Defendant had access to the said premises was denied by Defendant, the burden of proving that indeed the Defendant

had access to its premises after it had been locked with a padlock and chains lie with the Plaintiffs.

[75] Plaintiffs are therefore required to adduce sufficient evidence to prove same. In the case of ***Dzaisu v Ghana Breweries Limited [2007- 2008] SCGLR 539 at 541***, the Supreme Court speaking through Adinyira JSC (as she then was) held thus:

> It is trite law that a bare assertion by a party of his pleadings in the witness box without proof did not shift the evidential burden onto the other party.

[76] See also the case of ***Expom Ghana Limited vs Vanguard Assurance Company Ltd and TM-Star Insurance Services Ltd [2022] DLSC 11718***.

[77] During cross-examination of 1st Plaintiff by Counsel for Defendant on 17th June 2025, this is what transpired:

> *Q. Madam Alice, you have already admitted before the Court that without any court order, you locked out the Defendant from having access to the mast on 5th February 2023.*
>
> *A. We did put a lock on it but they always had access to their equipment and the mast.*
>
> *Q. I am putting it to you that your intention of locking up the Defendant was to prevent the Defendant from having access to the mast so as to pay you your outstanding rent?*

A. Yes. We put a lock on it to remind them that they needed to pay the rent which had been due for over a year.

[78] The 1st Plaintiff confirmed the lock up during the trial but failed to adduce any evidence to support its assertion that the Defendant had access to the premises to refuel its generators until Defendant decommissioned its equipment and vacated the premises on 18th January 2023.

[79] It is therefore established as a fact that the Plaintiffs prevented the Defendant from accessing the premises from 5th February 2023.

Whether or not the Plaintiff's unlawful action impeded the Defendant from discharging its contractual obligations owed to third parties:

[80] It is the case of the Defendant that the unlawful denial of access affected its operation since it kept a tower, a generator set with fuel, an MTN transmission cabinet with distribution cables, a surf line cabinet, a direct current plant, a direct current distribution board, an ECG Meter, an alternate current distribution and a board breaker and surge arrester on the premises.

[81] Defendant contends that it was conducting general servicing and fueling of the generator sets, general preventive maintenance of other equipment, attending to emergency technical issues arising from the premises, and general cleaning of the premises before the lock up, thereby causing the tower to shut down.

[82] The Plaintiffs did not adduce any evidence to contradict the assertion of the Defendant that the locking up of the premises impeded Defendant from discharging its contractual obligations owed to third parties.

[83] Therefore, it is established as a fact that the locking up of the premises by Plaintiffs impeded Defendant from discharging its contracting obligations to third parties.

[84] However, special damages must not only be pleaded but it must be proved and held in the case of **Delmas Agency Ghana Limited v Food Distribution International Ltd [2007-2008] SCGLR 748 @ 760,** thus:

> *"Where the Plaintiff has suffered properly quantifiable loss, he must plead specifically his loss and prove it strictly. If he does not he is not entitled to anything unless general damages are also appropriate.*

[85] It is my view that the Defendant did not adduce sufficient evidence at the trial to prove the actual loss it incurred in respect of its third party obligations to warrant the grant of specific damages. The Defendant is only entitled to the award of general damages.

Whether or not the plaintiffs are entitled to claim mesne profit and if so, how much?

[86] Mesne profits relate to damages for trespass sought by a landlord against his tenants for failing to quit the demised premises upon termination of the lease.

[87] Counsel for Defendant in his submission referred to the definition of "Mesne profits" by Prof. K. P. Kludze in his book ***Ghana Law of Landlord and Tenant, 2017 Edition*** at page 237 thus:

> *"Mesne profits represent damages for loss of possession during the period that the tenant remains in occupation after the issue of the writ."*

[88] Likewise, Counsel for Plaintiffs in his submission cited the definition of "Mesne profits" in the 2025 Lexis Nexis Property Report glossary as:

> *"An amount payable by a person in possession or occupation of land in circumstances when that person has no right to be in possession or occupation. Mesne profits are the monies payable by the person in possession or occupation to the person who has a better right to possess or occupy. They are calculated as the value of remaining in possession or occupation for the relevant period."*

[89] Counsel for Plaintiffs also cited the case of *Acquah vs. Oman Ghana Trust Holdings Ltd. [1984-86] 1 GLR 157*, *Monta vs.. Paterson Simons (Ghana) Limited [1982-83] GLR 195* and *C.F.A.O. vs. Thome [1966] GLR 107*.

[90] In this judgment, I have already established as a fact that the Lease Agreement between the parties expired on 14th September 2022.

[91] Thereafter, the Defendant requested for a short-term extension from 15th September 2022 to 14th March 2023 to enable it secure the permit required to decommission the tower and its equipment. This was after the Plaintiffs had

demanded for a monthly rent of US$1500.00 upon the expiration of the Lease.

[92] I have also established as a fact that the Plaintiffs locked up the premises on 5th February 2023. Subsequently the site was officially decommissioned on 18th January 2024.

[93] It presupposes that the Defendant occupied the premises from 15th September 2022 till 18th January 2024 when it vacated the premises.

[94] It therefore suggests that the Plaintiffs are entitled to mesne profits for the entire period. However, within the said period, the Plaintiffs locked up the premises. Therefore, the justice of the case requires that the Defendant pays mesne profits from the 15th of September 2022 to 5th February 2023 when the premise was locked up.

[95] Now, the quantum of mesne profit to be paid by the Defendant for the said period.

[96] The general position of the law is that the quantum of the mesne profits is normally the rent reserved in the lease. See the case of ***Clifton Securities Ltd. vs. Huntley (1960) 2 G.L.R. 290 (S.C.)***.

[97] In the instant case, the last rent is contained in the Second Amendment to the Leasehold Agreement marked as Exhibit "K" and Exhibit "3".

[98] The said Exhibit "K" extended the term of the Lease from 15th September 2020 to 14th September 2022 at a monthly rent of GHS8,550.00 as follows:

> ***"b) Commencing 15th September 2020, the Current Rent shall be GHS8,550.00 per month (the "New Rent"). The New Rent shall be paid subject to the deduction of statutory withholding tax."***

[99] Then again, the parties agreed that except for the modified terms all the other terms of the Lease Agreement and the First Amendment shall still have the full effect. There was no indication in the terms of the agreement to suggest that the said GHS8,550.00 was the cedi equivalent of US$1500.00.

[100] It is therefore established as a fact that the agreed monthly rent payable by Defendant for the period ending 15th September 2022 as stipulated in the Second Amendment was GHS8,550.00.

[101] It is the duty of the court to respect the sanctity of contracts. In the case of ***Allan Sugar (Products) Ltd vs.. Ghana Export Co Ltd [1987-88] GLR 922,*** the Supreme Court held thus:

> *"It is no function of the court to rewrite an agreement for the parties by inserting terms that would have been beneficial but were overlooked especially when such interpolation would amount to an interference with a third party's bargain."*

[102] Likewise, the Supreme Court held in the case of ***Muller vs. Home Finance Co Ltd [2012] 2 SGLR 1234 @ 1247*** thus:

> *"…it is desirable for people to use contracts in the business world to regulate and control their dealings with one another, then it is the duty of the law courts to give teeth to these contracts to enable them bite and bite very hard when the contracts are honoured in the breach by the parties. Adults who enter into legally enforceable contracts, conscious of the consequences whenever there is a breach, must be held accountable for such lapses. If the law courts are not careful in providing adequate remedies whenever a breach of contract occurs, then there is likely to be the risk that parties may play into the theory of efficient breach. Contracts shall be honoured by the courts more in their observance than in their breach. Unless such a decision is given by the courts, the very usefulness of contracts as legal instruments could fall into disrepute."*

[103] Having established that the agreed rent was GHS8,550.00, it is my considered view that the rent of GHS8,550.00 as agreed by the parties in the Second Amendment of Leasehold Agreement dated 6th October 2020 must be the baseline for the calculation of the mesne profits due to the Plaintiffs.

CONCLUSION

[104] Having considered in totality the evidence adduced at the trial, I hold that Plaintiffs claim succeeds in part. Likewise, Defendant's Counterclaim succeeds in part.

[105] Accordingly, I make the following orders:

1. **Plaintiff to Recover from Defendant mesne profits assessed at the monthly rate of Eight Thousand, Five Hundred and Fifty Ghana cedis (GHS8,550.00) from 15th September 2022 to 5th February 2023 for its occupation of the land on which house number B326/3 is situated.**
2. **Interest on the said monthly sum of GHS8,550.00 from 15th September 2022 to 5th February 2023 calculated at the prevailing Commercial Bank rate.**

[106] **In respect of the Counterclaim,**

1. **I declare that the Plaintiffs' act of locking up the premises where the Defendant had rented since 5th February 2023 is unlawful and amounts to forceful ejectment.**
2. **General damages of GHS10,000.00 awarded in favour of Defendant assessed against the Plaintiffs.**

[107] **Parties are to bear their own costs of litigation.**

Cases

Ackah vs. Pergah Ltd and Others [2010] SCGLR 728 at 736 13
Allan Sugar (Products) Ltd vrs. Ghana Export Co Ltd [1987-88] GLR 922 26
Clifton Securities, Ltd. Vrs. Huntley 25
Clifton Securities, Ltd. Vrs. Huntley (1960) 2 G.L.R. 290 (S.C.) 25
Delmas Agency Ghana Limited v Food Distribution International Ltd [2007-2008] SCGLR 748 24
Dzaisu v Ghana Breweries Limited [2007- 2008] SCGLR 539 at 541 21

Expom Ghana Limited vs Vanguard Assurance Company Ltd and TM-Star Insurance Services Ltd [2022] DLSC 11718 21
Gihoc v Hanna Assi [2005-2006] SCGLR 458 at 485 11
In Re Ashalley Botwe Lands [2003-2004] SCGLR 420 13
Karam & Sons v Traboulsi & Co [1964] GLR 513 19
Klah v Phoenix Insurance Company Limited [2012] 2 SCGLR 1139 12
Mrs. Veronica Sarhene and Mrs. Mary Atta Siaw v Edward Nassar & Co. Ltd and Paul Otchere & 14 Ors (2019) JELR 67481 (SC). 19
Muller vrs. Home Finance Co Ltd [2012] 2 SGLR 1234 @ 1247 26
Poku v Poku [2007 -2008] 2 SCGLR 996 at 1022 11
Sasu Bamfo vrs. Sintim [2012] 1 SCGLR 136 at 155, ... 15
Sumaila Bielbiel (No. 3) vrs. Adamu Dramani & Attorney-General [2012] SCGLR 370 @ 371 14

Statutes

Section 10(1) of the Evidence Act, 1975 (NRCD 323) 10
Section 11(1) and (4) of NRCD 323 10
Section 14 of NRCD 323 10
Section 17 (1) (a) and (b) 17
Section 17 of NRCD 323 11
Section 29 (1) (a) of Act 220 18

……..……(sgd.)……

JUSTICE ADELAIDE ABUI KEDDEY
JUSTICE OF THE HIGH COURT
COMMERCIAL DIVISION

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